FILED
JUL 30 2026
CLERK, U.S. DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI
Plaintiff In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
Tel: (209) 801-4442
E-mail: bnn.cdl@gmail.com

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **SHANNON SMITH, LCSW, Chief Executive Officer and Founder of HOPE Program, an individual; and HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation,** Defendants.	**Case No. 3:26-cv-07504-LJC** **NOTICE OF PAYMENT OF FILING FEE AND FILING OF STATE COURT DECISION** [Re: Dkt. No. 7] Judge: Hon. Lisa J. Cisneros United States Magistrate Judge

TO THE CLERK OF THE COURT AND ALL INTERESTED PARTIES:

Plaintiff BRENDAN NGEHSI NEWANFORBI, appearing in propria persona, respectfully submits this Notice in compliance with this Court's Order dated July 23, 2026 (Dkt. No. 7).

A. Payment of Filing Fee

In Section A of its Order, the Court noted that although Plaintiff appeared likely to qualify for in forma pauperis status, the IFP application (Dkt. No. 2) was submitted on the Administrative Office of the Courts form rather than this District's specific form, and directed Plaintiff to complete and file the Northern District's IFP application no later than August 13, 2026. (Dkt. No.

7 at 1.)

In lieu of filing the supplemental IFP application, Plaintiff has paid the full $405.00 civil case filing fee via Pay.gov on July 24, 2026 (Pay.gov Tracking ID: 284ERTOE; Agency Tracking ID: 77460057867). The filing fee payment renders the pending IFP application moot.

Plaintiff respectfully requests that the Court deem the IFP application (Dkt. No. 2) withdrawn, and that the Clerk process this case as a paid filing.

B. Filing of State Court Decision

In Section B of its Order, the Court directed Plaintiff to file a copy of the state court's decision no later than August 13, 2026, to allow the Court to determine whether case preclusion, issue preclusion, or any related doctrine might apply. (Dkt. No. 7 at 1-2.)

In compliance with that directive, Plaintiff files the following documents from *Newanforbi v. Palacios et al.*, San Joaquin County Superior Court, Case No. STK-CV-UF-2026-0001032 (Hon. George J. Abdallah, Jr.):

Exhibit A:

Order on Defendants' Demurrer to Plaintiff's First Amended Complaint (signed July 15, 2026; filed July 15, 2026).

Exhibit B:

Tentative Ruling (dated July 10, 2026, for hearing on July 15, 2026), setting forth the court's reasoning.

Exhibit C:

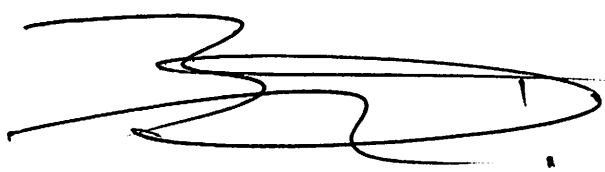
Minute Order (July 15, 2026), reflecting the court's affirmance of the tentative ruling and the proceedings at the hearing.

The signed order (Ex. A) sustains the demurrer without leave to amend on the stated ground that the First Amended Complaint fails to allege facts sufficient to state any cause of action. The court's Tentative Ruling (Ex. B), which was affirmed at the hearing as reflected in the Minute Order (Ex. C), provides the court's actual reasoning: the court held that exhaustion of administrative remedies was a jurisdictional prerequisite to Plaintiff's state-court action, and that Plaintiff failed to meet that jurisdictional requirement. (Ex. B at 1; Ex. C at 1.) The court did not reach or address the merits of any cause of action alleged in the state-court complaint.

The state-court action asserted seven causes of action: (1) fraud/intentional misrepresentation; (2) negligence, including negligence per se; (3) intentional infliction of emotional distress; (4) intentional interference with prospective economic advantage; (5) violation of the Bane Act (Civ. Code section 52.1); (6) declaratory relief; and (7) violation of Business and Professions Code section 17200. The defendants in that action were Katie Palacios and HOPE Psychotherapy, Inc. Shannon Smith was not a party to the state-court action.

No final judgment of dismissal has been entered in the state action as of the date of this filing.

Dated: July 27, 2026



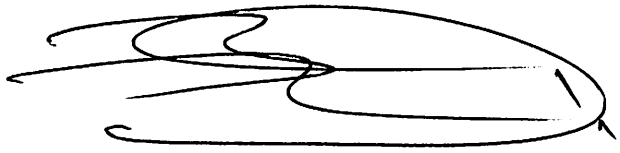
BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

CERTIFICATE OF SERVICE

I, BRENDAN NGEHSI NEWANFORBI, declare under penalty of perjury under the laws of the United States of America that on July 27, 2026, I filed the foregoing *NOTICE OF PAYMENT OF FILING FEE AND FILING OF STATE COURT DECISION* with the Clerk of the Court via the CM/ECF system. Because no Defendant has yet been served in this action, no service upon opposing parties is required at this time.

Executed on July 27, 2026, at Stockton, California.



BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

BRENDAN NGEHSI NEWANFORBI
Plaintiff In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
Tel: (209) 801-4442
E-mail: bnn.cdl@gmail.com

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **SHANNON SMITH, LCSW, Chief Executive Officer and Founder of HOPE Program, an individual; and HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation,** Defendants.	**Case No. 3:26-cv-07504-LJC**

EXHIBIT A

Order on Defendants' Demurrer to

Plaintiff's First Amended Complaint

Newanforbi v. Palacios et al.

Case No. STK-CV-UF-2026-0001032

Superior Court of the State of California

County of San Joaquin

Hon. George J. Abdallah, Jr., Judge

Signed July 15, 2026

CYNTHIA G. LAWRENCE (SBN 148927)
BRYAN L. MALONE (SBN 144082)
BLAZE VAN DINE (SBN 251946)
SIMS, LAWRENCE & BROGHAMMER
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Attorneys for Defendants
KATIE PALACIOS and HOPE PROGRAM

Filed JUL 15 2026
STEPHANIE BOHRER, CLERK
By DEPUTY

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

KATIE PALACIOS, Clinical Director, HOPE Program (Stockton, California), an individual; HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation; and DOES 1-10, inclusive,

Defendants.

Case No.: STK-CV-UF-2026-0001032

~~[PROPOSED]~~ ORDER ON DEFENDANTS KATIE PALACIOS AND HOPE PROGRAM'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT

Date: 7/15/26
Time: 9:00AM
Dept.: 10A

Complaint Filed: February 10, 2026
Trial Date: TBD

The demurrer of Defendants KATIE PALACIOS and HOPE PROGRAM to Plaintiff's First Amended Complaint came on for hearing in Department of this court on the date and time referenced above. Attorney Blaze Van Dine appeared on behalf of Defendants KATIE PALACIOS and HOPE PROGRAM. Plaintiff Brendan Ngehsi Newanforbi appeared in pro per on his own behalf. Having read and considered the demurrer, the memoranda, the request for judicial notice, and declarations filed by the parties, and having heard argument of counsel.

///

MAY 22 2026

FILE BY FAX

IT IS ORDERED THAT:

The demurrer to the First Amended Complaint is sustained without leave to amend on the grounds that the First Amended Complaint fails to allege facts sufficient to state any cause of action.

DATED: July 15, 2026

JUDGE OF THE SUPERIOR COURT
GEORGE J. ABDALLAH, JR

PROOF OF SERVICE

I, Kim Schmitt, certify and declare as follows:

I am over the age of 18 years, and not a party to this action. My business address is 1478 Stone Point Drive, Suite 450, Roseville, CA 95661. My business email is: kschmitt@sims-law.net. I am employed in the County of Placer where this service occurs.

On the date set forth below, following ordinary business practice, I served a true copy of the foregoing document(s) described as:

[PROPOSED] ORDER ON DEFENDANTS KATIE PALACIOS AND HOPE PROGRAM'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT

☐ (BY MAIL) I am readily familiar with my employer's normal business practice for collection and processing of correspondence for mailing with the U.S. Postal Service. Correspondence so collected and processed is deposited with the U.S. Postal Service that same day in the ordinary course of business. I placed for deposit in the United States Postal Service in a sealed envelope, with postage fully prepaid, to the addressee(s) below.

☐ (BY PERSONAL SERVICE) I personally delivered the above document(s) by hand between 9:00 a.m. and 5:00 p.m. to the office of the addressee(s) below.

☐ (BY OVERNIGHT DELIVERY) I deposited in a box or other facility regularly maintained by Federal Express an express service carrier, or delivered to a courier or driver authorized by said express service carrier to receive such envelope(s) to be delivered by overnight delivery, with delivery fees paid or provided for, addressed to the person(s) on whom it is to be served below.

☒ (BY ELECTRONIC SERVICE) I transmitted via electronic service through electronic mail to the offices of the addressee(s) below as stated on the attached service list on this date before 5:00 p.m.

SEE ATTACHED SERVICE LIST

☒ (State) I certify and declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on: May 22, 2026

Kim Schmitt

SERVICE LIST

Brendan Ngehsi Newanforbi Plaintiff, in Pro Per 1455 Cat Tail Drive Stockton, CA 95204 (209) 801-4442 E: bnn.cdl@gmail.com	**PLAINTIFF, IN PER**

BRENDAN NGEHSI NEWANFORBI
Plaintiff In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
Tel: (209) 801-4442
E-mail: bnn.cdl@gmail.com

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **SHANNON SMITH, LCSW, Chief Executive Officer and Founder of HOPE Program, an individual; and HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation,** Defendants.	**Case No. 3:26-cv-07504-LJC**

EXHIBIT B

Tentative Ruling

Newanforbi v. Palacios et al.

Case No. STK-CV-UF-2026-0001032

Superior Court of the State of California

County of San Joaquin

Hon. George J. Abdallah, Jr., Judge

Dated July 10, 2026

Superior Court of California, County of San Joaquin

Tentative Ruling

Date: 07/10/2026 **Case Number:** STK-CV-UF-2026-0001032

Newanforbi Brenden Nghesi vs Katie Palacios, Clinical Director et al.

Event: Demurrer
Event Date: 07/15/2026 at 9:00 AM in Department 10A

Demurrer
TENTATIVE RULING
Newanforbi Nghesi v. HOPE Program et al.
Case No.2026-1032
July 15, 2026

The court having read and considered Defendants' Demurrer to Plaintiff's First Amended Complaint (FAC), Plaintiff's Opposition and Defendants' Reply rules as follows. The court agrees with Defendants' analysis and the authorities cited in their Motion and Reply that exhaustion of administrative remedies herein is a jurisdictional requirement to the filing of Plaintiff's FAC. The court finds Plaintiff failed to meet this jurisdictional requirement prior to the filing of his FAC. Therefore, Defendants' Demurrer is GRANTED WITHOUT LEAVE TO AMEND.

Hon. George J. Abdallah, Jr.
Judge of the Superior Court

BRENDAN NGEHSI NEWANFORBI
Plaintiff In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
Tel: (209) 801-4442
E-mail: bnn.cdl@gmail.com

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **SHANNON SMITH, LCSW, Chief Executive Officer and Founder of HOPE Program, an individual; and HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation,** Defendants.	**Case No. 3:26-cv-07504-LJC**

EXHIBIT C

Minute Order

Newanforbi v. Palacios et al.

Case No. STK-CV-UF-2026-0001032

Superior Court of the State of California

County of San Joaquin

Hon. George J. Abdallah, Jr., Judge

July 15, 2026

Superior Court of California, County of San Joaquin

MINUTE ORDER

Date: 07/15/2026 09:00 AM
Brenden Nghesi Newanforbi vs Katie Palacios, Clinical Director et al.
Event Type: Demurrer

Case Number: STK-CV-UF-2026-0001032

Department: 10A

Appearances: Presiding Judge: George J. Abdallah. Plaintiff, Brenden Nghesi Newanforbi, appears Pro Se. Private Attorney, Blaze Van-Dine, appears for Defendant, HOPE Program (Stockton California), an individual. Private Attorney, Blaze Van-Dine, appears for Defendant, Katie Palacios, Clinical Director. Also attending: aliechty Court Clerk.

Oral argument was requested by Plaintiff, Pro se.

Matter submitted with argument.

The Court affirmed the tentative ruling as follows:

The court having read and considered Defendants' Demurrer to Plaintiff's First Amended Complaint (FAC), Plaintiff's Opposition and Defendants' Reply rules as follows. The court agrees with Defendants' analysis and the authorities cited in their Motion and Reply that exhaustion of administrative remedies herein is a jurisdictional requirement to the filing of Plaintiff's FAC. The court finds Plaintiff failed to meet this jurisdictional requirement prior to the filing of his FAC. Therefore, Defendants' Demurrer is GRANTED WITHOUT LEAVE TO AMEND.

Hon. George J. Abdallah, Jr.
Judge of the Superior Court

Demurrer to First Amended Complaint is sustained without leave to amend.

The Case Management Conference set at 8:45 AM on October 13, 2026 remains as previously ordered.

The formal order was signed this date.

Brendan Ngehsi Newanforbi
1455 Cat Tail Drive
Stockton, CA 95204

Retail

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United States Courthouse
1301 Clay Street, Suite 400S
Oakland, CA 94612

RECEIVED
JUL 30 2026
CLERK, U.S. DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA